



CHAPTER viii

An Act to make further provision with respect to dues rates and charges demandable at Cattedown Wharves Plymouth and for other purposes.

[6th June 1957.]

WHEREAS by the Burnard and Alger's Cattedown Wharves Act 1887 (hereinafter referred to as "the Act of 1887") powers were conferred upon the owners of the quays and wharves situate on the northern side of the Cattewater Harbour in the borough of Plymouth known as Burnard and Alger's Cattedown Wharves and on their successors and assigns of levying dues and rates at the said quays and wharves and of issuing transferable certificates and warrants for the delivery of goods :

And whereas Cattedown Wharves Limited (hereinafter called "the Company") are the assigns of the said owners and are the undertakers within the meaning of the Act of 1887 :

And whereas by the Cattedown Wharves Act 1921 the Company were authorised to increase the dues and rates which they were then authorised to charge :

And whereas it is expedient to make further provision with respect to the dues and rates which may be demanded taken and recovered by the Company :

And whereas it is expedient that the other provisions of this Act be enacted :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1.—(1) This Act may be cited as the Cattedown Wharves Act 1957.

(2) The Cattedown Wharves Acts 1887 and 1921 and this Act may be cited as the Cattedown Wharves Acts 1887 to 1957.

Application
of Harbours
Clauses Act
1847.

2. The provisions of the Harbours Clauses Act 1847 except sections 6 to 26 and 47 to 96 shall so far as they are applicable and are not expressly varied by this Act be incorporated with and form part of this Act :

Provided that in construing the Harbours Clauses Act 1847 the expression “the special Act” shall mean this Act the expression “the harbour dock or pier” shall mean the quay as defined in section 3 (Interpretation) of this Act the expression “vessel” shall have the meaning assigned to it by the said section 3 and the expression “the undertakers” shall mean the Company and their successors and assigns.

Interpretation.

3. In this Act unless there be something in the subject or context repugnant to such construction—

“the Company” means Cattedown Wharves Limited ;

“goods” includes livestock minerals and merchandise of all descriptions ;

“Harbours Clauses Act 1847” means the Harbours Docks and Piers Clauses Act 1847 ;

“master” where used with reference to a vessel includes the owner of and agent or broker for the vessel and any charterer to whom the vessel is demised ;

“the Minister” means the Minister of Transport and Civil Aviation ;

“owner” where used with reference to goods includes the consignor consignee importer shipper exporter receiver broker or agent for sale or custody of the goods ;

“the quay” means the quay and wharves known as the Cattedown Wharves and the lands belonging to or reputed to belong to the Company adjoining the same or in the neighbourhood thereof coloured pink upon the plan signed in quadruplicate by the Right Honourable the Earl of Donoughmore the chairman of the committee of the House of Lords to whom the Bill for the Cattedown Wharves Act 1921 was referred and deposited respectively in the Parliament Office of the House of Lords in the Private Bill Office of the House of Commons at the Ministry of Transport and Civil Aviation and at the registered office of the Company ;

“vessel” includes any vessel ship lighter keel barge boat raft pontoon and craft of any kind however navigated propelled or moved.

4.—(1) The Company may demand and take in respect of every vessel using the quay and in respect of all goods shipped or unshipped or landed or delivered at the quay any sum not exceeding the dues and rates stated in the schedule to this Act subject to the exemption and conditions specified in that schedule. Dues and rates.

(2) The dues and rates authorised by this section shall be recoverable respectively from the master of the vessel or the owner of the goods in respect of which the dues or rates are demanded.

5.—(1) The Company may (so far as the dues and rates specified in the schedule to this Act do not extend) demand and take such reasonable rates as they may from time to time determine for the shipping unshipping landing relanding and loading of goods and for the use of any warehouses sheds buildings yards weighing-machines moorings cranes buoys works and conveniences belonging to or provided by them or in respect of any services rendered by them in connection with the quay. Rates for services and accommodation not otherwise provided for.

(2) The rates authorised by this section shall be recoverable respectively from the owner of the goods or other articles dealt with or from the master of any vessel using or applying for the use of such plant appliances conveniences or services or from any person who may so apply.

6. In addition to the remedy given by section 44 of the Harbours Clauses Act 1847 and whether the demand required by that section has been made or not the Company may recover any dues and rates which by this Act they are authorised to demand and take or any arrears of dues or rates payable to them as a debt in any court of competent jurisdiction. Recovery of dues and rates.

7. The following enactments are hereby repealed :—

Repeals.

Burnard and Alger's Cattedown Wharves Act 1887—

Section 4 (Power to levy rates &c.) ;

Cattedown Wharves Act 1921—

Section 2 (Interpretation).

Section 3 (Increased rates and duties).

Section 4 (Periodical revision of rates and duties).

8. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

SCHEDULE

DUES ON VESSELS			per n.r.t.
			s. d.
For every vessel not exceeding 200 tons	..	..	0 5
For every vessel exceeding 200 tons and not exceeding 500 tons	..	..	0 10
For every vessel exceeding 500 tons and not exceeding 1,000 tons	..	..	1 3
For every vessel exceeding 1,000 tons and not exceeding 2,000 tons	..	..	1 7
For every vessel exceeding 2,000 tons and not exceeding 3,000 tons	..	..	2 0
For every vessel exceeding 3,000 tons	..	..	2 4

RATES ON GOODS			s. d.
For all goods (except as hereinafter mentioned)—			
To or from any port or place in Great Britain and Northern Ireland per ton	..	..	2 6
To or from any other port or place per ton	..	..	5 0
Bricks slate sand and stones per ton	..	..	1 6

EXEMPTION

No rates shall be levied on ships fittings dunnage and stevedores' gear required for a vessel's own use.

CONDITIONS

(i) Where a vessel loads or discharges deck or double bottom cargo the tonnage of the cargo so carried shall be calculated on the basis of 40 cubic feet to one ton and the tonnage so calculated shall be added to the n.r.t. for the purpose of charging dues on vessels.

(ii) In computing rates on goods, a fraction of a ton or of a hundredweight shall be deemed to be a ton or hundredweight (as the case may be).

" n.r.t." means net registered tonnage.

Table of Statutes referred to in this Act

Short title	Session and chapter
Harbours Docks and Piers Clauses Act 1847 ..	10 & 11 Vict. c. 27.
Burnard and Alger's Cattedown Wharves Act 1887	50 & 51 Vict. c. lxxxvii.
Cattedown Wharves Act 1921	11 & 12 Geo. 5 c. xxxiii.

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